

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amarylis Rivera	Team: Team # 6	CCRB Case #: 201213946	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 10/22/2012 3:30 PM	Location of Incident: § 87(2)(b) and § 87(2)(b) 81st Precinct	Precinct: 81	18 Mo. SOL 4/22/2014	EO SOL 4/22/2014	
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/26/2012 12:05 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Keville Caesar	11345	951578	PBBN
2. POF Erica Rivera	25743	951148	PBBN
3. SGT Erik Powers	05297	944907	081 PCT
4. POM Caner Sezer	25291	951236	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Swift	26931	931288	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Keville Caesar	Discourtesy: PO Keville Caesar spoke discourteously to § 87(2)(b) and § 87(2)(b) on § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.POF Erica Rivera	Force: PO Erica Rivera struck § 87(2)(b) with an asp on § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
C.POM Caner Sezer	Abuse: PO Caner Sezer threatened § 87(2)(b) with the use of force en route to the 81st Precinct Stationhouse.	§ 87(2)(b)
D.SGT Erik Powers	Discourtesy: Sgt. Erik Powers spoke discourteously to § 87(2)(b) and § 87(2)(b) inside the 81st Precinct Stationhouse.	§ 87(2)(b)

Case Summary

On October 22, 2012, Sgt. Andrew Dubas, from the 81st Precinct, called IAB to report this complaint on behalf of § 87(2)(b) and § 87(2)(b) (encl. 5A-C). The complaint was received by the CCRB via IAB log number 12-56276 on October 26, 2012. The following allegations resulted:

- **Allegation A- Discourtesy: PO Keville Caesar spoke discourteously to** § 87(2)(b) **and** § 87(2)(b) **on** § 87(2)(b) **and** § 87(2)(b) § 87(2)(g)
- **Allegation B- Force: PO Erica Rivera struck** § 87(2)(b) **with an asp on** § 87(2)(b) **and** § 87(2)(b) § 87(2)(g)
- **Allegation C- Abuse of Authority: PO Caner Sezer threatened** § 87(2)(b) **with the use of force en route to the 81st Precinct Stationhouse.**
- **Allegation D- Discourtesy: Sgt. Erek Powers spoke discourteously to** § 87(2)(b) **and** § 87(2)(b) **inside the 81st Precinct Stationhouse.** § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/ Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was a § 87(2)(b) black female. She stands at 5'5" tall, weighs 151 pounds, and has black hair and eyes.* § 87(2)(b)

Statements to Medical Personnel (Enclosed in the Medical Records Case File)

On § 87(2)(b), § 87(2)(b) was seen by paramedics at the 81st Precinct Stationhouse. § 87(2)(b) informed the paramedics that she was struck by police on her right knee. She added that she felt pain in her right knee and hand. In § 87(2)(b), § 87(2)(b) informed medical personnel that she was struck on the right knee and hand by a police officer's night stick.

CCRB Statements

On February 4, 2013, § 87(2)(b) provided a phone statement (encl. 7A-B), on March 1, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 8A-G) and on March 29, 2013, and § 87(2)(b) provided an additional phone statement (encl. 10A). § 87(2)(g)

On October 22, 2012, at approximately 3:30 p.m., § 87(2)(b) was in a physical altercation with an unidentified female on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, in front of § 87(2)(b) and § 87(2)(b). § 87(2)(b) § 87(2)(b) friend, was with § 87(2)(b) and the unidentified female, attempting to break the two apart. § 87(2)(b) § 87(2)(b)'s brother, was across the street, in front of § 87(2)(b). Two police officers, identified via investigation as, PO Erica Rivera and PO Keville Caesar, from Patrol Borough Brooklyn North, were on foot post at the same location where § 87(2)(b) was standing. PO Rivera and PO Caesar ran across the street to the location of § 87(2)(b) the unidentified female, and § 87(2)(b). There were approximately thirty to forty spectators.

PO Rivera grabbed § 87(2)(b) who was seated on top of the unidentified female, from behind and pulled her away. PO Cesar grabbed onto the unidentified female and pulled her away. As they separated the females, PO Caesar stated, "this is the fucking police, let go."

PO Rivera removed and held her asp. She commanded § 87(2)(b) to remain on the ground and not attempt to get up. However, § 87(2)(b) did not comply, because the unidentified female advanced towards her. PO Rivera then stood in front of § 87(2)(b) and pushed her away from the unidentified female. The unidentified female verbally threatened § 87(2)(b) and in retaliation, § 87(2)(b) attempted to spit at the unidentified female, but it may have landed on PO Rivera. PO Caesar allowed the unidentified female to leave. PO Rivera then used her radio to call for back-up, then immediately struck § 87(2)(b) with her asp; once on her left thigh. § 87(2)(b) then attempted to run across the street to her mother's residence (§ 87(2)(b)) but PO Rivera grabbed § 87(2)(b) by her hair and struck § 87(2)(b) with her asp an additional three times; once on her right thigh, and twice on her right knee. At this moment, § 87(2)(b) attempted to grab PO Rivera's asp, but was unable to do so.

§ 87(2)(b) also attempted to grab PO Rivera's asp, from behind PO Rivera, but PO Caesar interrupted § 87(2)(b) and attempted to grab her. § 87(2)(b) turned around and spat at PO Caesar. He then grabbed and threw § 87(2)(b) onto the ground. § 87(2)(b) § 87(2)(b)'s brother, then approached PO Caesar, grabbed PO Caesar's shoulders, and may have struck PO Caesar. The last thing § 87(2)(b) observed was a group of officers attempting to remove § 87(2)(b) from PO Caesar.

Many officers arrived on scene, some of which were dressed in plainclothes. Approximately, three marked vehicles were on scene. An unidentified uniformed officer (PO1) approached PO Rivera and § 87(2)(b) and assisted PO Rivera with § 87(2)(b) who was bent forward at her midsection. PO1 and PO Rivera attempted to bring § 87(2)(b) in a kneeling position onto the ground. Whenever, PO1 and PO Rivera tried to guide her to the ground, she would pick her upper body up into a standing position. PO1 and PO Rivera would also attempt to bring § 87(2)(b) arms behind her back, but on each attempt § 87(2)(b) would extend her arms towards her side, preventing the officers from handcuffing her. § 87(2)(b) was then handcuffed five to ten minutes after. § 87(2)(b) did not punch or attempt to punch PO Rivera nor did she push or attempt to push PO Rivera. § 87(2)(b) was then placed into a marked vehicle.

In the vehicle, PO Rivera sat in the front passenger seat, § 87(2)(b) was behind PO Rivera, in the rear passenger seat. PO Caner Sezer, from the 81st Precinct, identified through the investigation, was seated next to § 87(2)(b) in the rear passenger seat, and PO Michael Swift, also from the 81st Precinct, and identified through the investigation, was the driver of the marked vehicle.

During her transport, § 87(2)(b) was mumbling under her breath about what had just occurred. PO Sezer then un-flipped his mace carrier and stated, “Shut up bitch, I’ll mace you.” § 87(2)(b) responded that her aunt was a police officer and she could obtain his badge. Upon hearing § 87(2)(b) comment PO Sezer closed his mace carrier. PO Rivera and PO Swift did not state anything during the ride to the precinct. § 87(2)(b) indicated that there is a possibility that PO1 and PO Sezer is the same officer, but was unsure. While she was getting handcuffed she was unable to see the officer helping PO Rivera because her hair was in her face.

§ 87(2)(b) arrived at the 81st Precinct Stationhouse. Shortly after, § 87(2)(b) arrived. The paramedics arrived at the stationhouse thirty minutes after § 87(2)(b) arrival. Paramedics checked § 87(2)(b) knee and provided her an ice pack. Around § 87(2)(b) § 87(2)(b) and § 87(2)(b) were taken to § 87(2)(b).

In § 87(2)(b) x-rays were taken of § 87(2)(b) knee. The doctors informed § 87(2)(b) that she had no broken bones. § 87(2)(b) sustained a little cut on the left side of her forehead, but § 87(2)(b) did not know if she received any medical treatment.

At § 87(2)(b) § 87(2)(b) and § 87(2)(b) returned to the 81st Precinct Stationhouse, and were placed in a room across from the desk. They were handcuffed to a pole. At approximately 12:00 a.m., a sergeant identified via the investigation as Sgt. Powers exited the bathroom, kicked the chair located in front of § 87(2)(b) and § 87(2)(b) and stated, “You go home when I tell you to go home, bum bitches.” § 87(2)(b) and § 87(2)(b) were the only individuals in the room. There was no interaction between § 87(2)(b) and Sgt. Powers prior to the stated comment.

§ 87(2)(b) sustained bruises on her thigh and knee. She currently suffers from stiffness in her knee, but did not seek any other medical treatment after being seen in § 87(2)(b).

Attempts to Contact Civilians

§ 87(2)(b) is the second identified victim of this incident. Through the course of the investigation § 87(2)(b) was unable to be reached by the undersigned investigator. When § 87(2)(b) appeared for her CCRB interview on March 1, 2013, she had no contact information for § 87(2)(b).

On January 23, 2013 and March 27, 2013, phone calls were placed to the phone number listed on § 87(2)(b) s arrest report, but an automated message indicated that the individual was not accepting calls at the moment. On January 23, 2013, a first call letter was sent to § 87(2)(b) at the address listed on her arrest report.

As a result of this incident, § 87(2)(b) s brother, § 87(2)(b) was also arrested. § 87(2)(b) s arrest report indicated that he lived with § 87(2)(b) and a secondary phone number was listed. On January 23, 2013, the secondary phone number was contacted, and § 87(2)(b) answered. She identified herself as § 87(2)(b) s cousin, and stated that neither § 87(2)(b) nor § 87(2)(b) lived at that address and that she was not in contact with § 87(2)(b) or § 87(2)(b) and was unable to provide any additional contact information for them.

On March 27, 2013, a NYS Department of Motor Vehicles search was conducted for § 87(2)(b) (encl. 33A-C), but the search rendered negative results. On April 2, 2013, a Lexis Nexis search

was conducted for § 87(2)(b) (encl. 32A-Z). The results provided an additional address for potential relatives of § 87(2)(b). Two letters were sent to the address on June 28, 2013 and July 17, 2013. The Lexis Nexis results also provided an additional phone number; a phone call was made, but the undersigned investigator was unable to leave a message.

Furthermore, a separate Lexis Nexis search was conducted for § 87(2)(b) (encl. 33D), but produced negative results - unable to contact. Neither § 87(2)(b) nor § 87(2)(b) responded to the undersigned investigator's contact attempts, and the letters sent were never returned by the United States Postal Service. Consequently, no statement could be obtained.

The incident occurred in front of § 87(2)(b) and § 87(2)(b) located at § 87(2)(b) Brooklyn and at the vicinity of § 87(2)(b) located at § 87(2)(b). On February 14, 2013, a subpoena was sent to each location requesting any surveillance footage on the date and time of the incident. However, responses were received via telephone and correspondence indicating that there is no existing surveillance footage.

NYPD Statements:

Subject Officer: PO ERICA RIVERA

- *At the time of the incident, PO Rivera was a § 87(2)(b) Hispanic female, standing at 5'5" tall, weighing 125 pounds, with black hair and brown eyes.*
- *On October 22, 2012, PO Rivera worked from 3:00 p.m. to 11:35 p.m. She was assigned to foot patrol. PO Rivera's partner was PO Keville Caesar. PO Rivera was dressed in uniform.*

Complaint and Arrest Reports (UF-61)

On the date and time of incident, at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, three individuals were arrested. § 87(2)(b) § 87(2)(b), § 87(2)(b) (§ 87(2)(a) old), and § 87(2)(b) § 87(2)(b) and three complaint reports were completed for each arrest.

§ 87(2)(a) FCT § 380.1

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

Memo Book:

At 3:45 p.m., three under, in regards to a fight on the corner of § 87(2)(b) and § 87(2)(b)

On fly pages described the incident in further detail: two females were fighting. Upon breaking the fight, defendant, started fighting with police officer, push and spat on her face (police officer's face.) She continued to resist arrest, making police officer use baton on the defendant's legs. Then defendant's friend and friend's brother jumped in, three under (*encl.12A-C*).

CCRB Testimony:

On August 26, 2013, PO Rivera was interviewed at the CCRB (*encl.13A-C*).

On October 22, 2012, PO Rivera was working with PO Caesar; they were assigned to foot patrol on § 87(2)(b) and § 87(2)(b) in Brooklyn. At approximately 3:30 p.m., PO Rivera observed a large crowd forming across the street from her post. The crowd consisted of approximately one hundred spectators. The crowd gathered around two females, § 87(2)(b) and an unidentified female, involved in a physical altercation. The crowd came running from many directions; they were yelling and jumping on vehicles to obtain a better view of the fight. Upon observation, PO Rivera and PO Caesar ran across the street to break up the fight.

§ 87(2)(b) was seated on top of the unidentified female, with her hand wrapped around the unidentified female's hair. § 87(2)(b) was kicking the unidentified female. As PO Rivera and PO Caesar were separating the girls, PO Rivera stated, "Police. Get off the girl. Put your hands behind your back." PO Rivera and PO Caesar were able to separate the females within five minutes. PO Rivera grabbed § 87(2)(b) § 87(2)(b) then turned around to face PO Rivera, and started swinging her arms in an attempt to punch PO Rivera. PO Rivera had removed her handcuffs and commanded § 87(2)(b) to place her hands behind her back, several times, but § 87(2)(b) did not comply with PO Rivera's request. § 87(2)(b) then spat on PO Rivera's face and continued swinging at PO Rivera in an attempt to punch her. To try to gain control of the situation and detain § 87(2)(b) PO Rivera removed her asp. In addition, PO Rivera radioed for additional units. PO Rivera struck § 87(2)(b) once on her left calf. PO Rivera recalled striking § 87(2)(b) on her left calf, because they were facing each other. PO Rivera did not strike any other part of § 87(2)(b) body.

Subsequent to the strike, § 87(2)(b) § 87(2)(b) friend) jumped on top of PO Rivera, from the back, and tried to pull PO Rivera away from § 87(2)(b) § 87(2)(b) told PO Rivera to get off her friend. PO Caesar grabbed § 87(2)(b) and removed her from PO Rivera. Upon removing § 87(2)(b) PO Caesar was then jumped by § 87(2)(b)'s brother, § 87(2)(b) PO Rivera did not observe what occurred with PO Caesar, § 87(2)(b) and § 87(2)(b)

Within two to three minutes from PO Rivera's call for assistance, multiple plainclothes units responded. Two unidentified plainclothes officers, PO1 and PO2, assisted PO Rivera with § 87(2)(b) § 87(2)(b) PO Rivera did not know who they were, but assumed they were from the Anti-Crime unit. PO1 grabbed one of § 87(2)(b) arms and PO2 grabbed the other. § 87(2)(b) was pulling her arms forward as PO1 and PO2 pulled her arms back. PO1 and PO2 were able to place § 87(2)(b) arms behind her back, allowing PO Rivera to handcuff her. The plainclothes officers arrived in an unmarked vehicle, but PO Rivera could not describe the unmarked vehicle.

§ 87(2)(b) was transported to the 81st Precinct in an RMP, but PO Rivera could not recall if it was in an unmarked or marked RMP. PO Rivera travelled with § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) were not in the same RMP as PO Rivera and § 87(2)(b). PO Rivera recalled being seated in the front passenger seat, but could not recall which other officers were in the RMP. PO Rivera could not recall if § 87(2)(b) stated anything during her transport to the 81st Precinct, or if any conversations were held in the RMP.

At the 81st Precinct, § 87(2)(b) was placed in the roll call room, because she was a minor. § 87(2)(b) was complaining of pain in her leg, but PO Rivera could not recall which leg. EMS arrived at the stationhouse an hour after § 87(2)(b) initial complaint. The EMS checked § 87(2)(b) and indicated that there was nothing wrong. PO Rivera could not recall if § 87(2)(b) and § 87(2)(b) were removed from the precinct and taken to the hospital.

PO Rivera could not recall if the crowd was yelling and jumping on top of vehicles when § 87(2)(b) and § 87(2)(b) were being arrested. PO Rivera did not use any profanity during this incident, but could not recall if PO Caesar or any other officer used any profanity during this incident. PO Rivera indicated that the unknown female fled from the scene, during the apprehension of the aforementioned individuals.

Subject Officer: PO KEVILLE CAESAR

- *At the time of the incident, PO Cesar was a § 87(2)(b) black male. He stands at 5'8" tall, weighs 150 pounds, and has black hair brown eyes.*
- *On October 22, 2012, PO Cesar worked the same tour and assignment at PO Erica Rivera.*

Memo Book:

At 3:45 p.m., PO Cesar had arrived at his post. At 4:00 p.m., two females fighting at the corner of § 87(2)(b) and § 87(2)(b). At 4:05 p.m., an 85 (additional units) was called for crowd control, disorderly group. At 4:30 p.m., three under in regards § 87(2)(b). The females are § 87(2)(b) each, and the male, § 87(2)(b). PO Rivera was the arresting officer. During the fight, females were separated. One female, § 87(2)(b) did resist lawful arrest by PO Rivera. Female did punch and hit PO Rivera, several times, about her body. Female also spit on PO Rivera's face. During an attempt to place § 87(2)(b) under arrest, § 87(2)(b) did attempt to prevent the lawful arrest by grabbing at myself and PO Rivera. Then her brother § 87(2)(b) attempted to prevent the arrest of § 87(2)(b). Delayed entry (for § 87(2)(b) transporting two females, § 87(2)(b) and § 87(2)(b) to § 87(2)(b) ACR # § 87(2)(b) EMT § 87(2)(b) shield # § 87(2)(b) Bus # § 87(2)(b) At § 87(2)(b) arrival at § 87(2)(b) At § 87(2)(b), they were released by § 87(2)(b) and at § 87(2)(b) transporting two females back to 81st in lodge § 87(2)(b) (encl.14A-C).

CCRB Testimony:

On October 30, 2013, PO Caesar was interviewed at the CCRB (encl.15A-C).

On October 22, 2012, PO Caesar and PO Rivera were assigned to a foot post on § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) is the borderline of the 81st Precinct and 79th Precinct.

Shortly after PO Caesar and PO Rivera arrived at their foot post, they observed two females fighting, across § 87(2)(b) at the 79th Precinct section. § 87(2)(b) was on top of an unidentified female. PO Caesar and PO Rivera separated § 87(2)(b) and the unidentified female; PO Caesar grabbed the unidentified female and PO Rivera grabbed § 87(2)(b).

PO Caesar indicated that prior to their arrival there was a crowd of 20 individuals observing the fight between § 87(2)(b) and the unidentified female. The crowd remained throughout the incident. The crowd was very hostile towards the police officers and they were screaming at the officers, but PO Caesar could not recall the comments the crowd made towards the officers. PO Caesar could not recall if any of the arrested individuals § 87(2)(b) and § 87(2)(b) interacted with the crowd.

PO Caesar and PO Rivera identified themselves as police officers and commanded the females to let go of each other. Neither PO Caesar nor PO Rivera state “This is the fucking police, let go.” Or use any profanity. Within seconds, PO Caesar and PO Rivera were able to separate the females. PO Rivera had § 87(2)(b) in one corner, and PO Caesar had the unidentified female at another corner. PO Caesar’s back was facing PO Rivera and § 87(2)(b). He was approximately ten feet away from PO Rivera.

PO Caesar heard a scuffle behind him; he looked back over his shoulder, and observed a scuffle between PO Rivera and § 87(2)(b). § 87(2)(b) punched and hit PO Rivera about her body, but PO Caesar did not know where exactly on PO Rivera body § 87(2)(b) had struck. PO Caesar turned to address the unidentified female, and informed her not to move. PO Caesar looked over his shoulder, again. PO Caesar then observed PO Rivera struggling with § 87(2)(b) and § 87(2)(b). § 87(2)(b) was behind PO Rivera and grabbed her. PO Caesar did not observe PO Rivera remove and use her asp and he was not made aware any time after the incident that she had used her asp.

PO Caesar went over to assist PO Rivera; he grabbed § 87(2)(b)’s shoulders, and pulled her off of PO Rivera. PO Caesar then returned to help PO Rivera complete § 87(2)(b) arrest, but as he approached, § 87(2)(b) jumped on PO Caesar’s back. PO Caesar turned around and pushed § 87(2)(b) off. § 87(2)(b) did not go down onto the ground. § 87(2)(b) attempted to spit on PO Caesar, but missed. § 87(2)(b) was the only civilian who attempted to spit on an officer, but he did not observe any other individual attempt to spit on any other officer on scene. PO Caesar then grabbed § 87(2)(b) to place her in handcuffs to prevent her from interfering in § 87(2)(b) arrest. § 87(2)(b)’s brother, § 87(2)(b) standing next to PO Caesar, attempted to grab PO Caesar’s arms, and prevent him from arresting § 87(2)(b) and he pushed him aside. PO Caesar did not use any additional physical force against § 87(2)(b) and § 87(2)(b). While PO Caesar was attempting to handcuff § 87(2)(b) he did not observe what occurred with PO Rivera and § 87(2)(b).

At 4:05 p.m., PO Rivera called for additional units, but PO Caesar could not recall when the additional units arrived on scene and if the units were plainclothes or uniformed units, nor the amount of officers that responded to PO Rivera’s call. PO Caesar was made aware of the presence of the additional units during the time he was trying to arrest § 87(2)(b). The additional officers pulled § 87(2)(b) away from PO Caesar, and they handcuffed § 87(2)(b). The additional officers also assisted in § 87(2)(b)’s arrest. PO Caesar could not recall if he was the officer that placed the handcuffs on either § 87(2)(b) or § 87(2)(b). PO Caesar did not

know the officers that responded and assisted him. § 87(2)(b) and § 87(2)(b) did not resist arrest, but the reason why the multiple officers assisted with their arrest was because a call was made for multiple units.

The arrested individuals were transported to the 81st Precinct Stationhouse, but PO Caesar could not recall which unit transported the arrested individuals. PO Caesar was given a ride to the 81st Precinct Stationhouse, but he could not recall who he was traveling with, or if he was traveling back with any of the arrested individuals.

In the Stationhouse, § 87(2)(b) and § 87(2)(b) requested to go to the hospital, but PO Caesar did not recall the reason for their request. At § 87(2)(b) PO Caesar transported § 87(2)(b) and § 87(2)(b) to § 87(2)(b). PO Caesar could not recall if PO Rivera was present during the transport. PO Caesar returned back to the 81st Precinct Stationhouse with § 87(2)(b) and § 87(2)(b) at § 87(2)(b), and PO Caesar did not have any further interaction with § 87(2)(b) and § 87(2)(b). PO Caesar did not know where § 87(2)(b) and § 87(2)(b) were placed after their arrival. PO Caesar then resumed patrol.

Subject Officer: PO CANER SEZER

- *At the time of the incident, PO Sezer was a § 87(2)(b) white male. He stands at 6'0", weighs 190, and has brown hair and eyes.*
- *On October 22, 2012, PO Sezer worked from 3:50 p.m. to 11:35p.m. He was assigned to sector patrol (Sector ABC) and was working with PO Michael Swift. They were dressed in uniform and assigned to marked car, RMP# 3477. At the time, PO Sezer was assigned to 81st Precinct.*

Memo Book

At 3:50p.m., an 85 (additional units) was made for § 87(2)(b) and § 87(2)(b). At 3:35 p.m., one female transported to the 81st Precinct. At 3:57p.m., female out of RMP, and at 4:11 p.m., resumed patrol (encl.16A-B).

CCRB Testimony

On December 6, 2013, PO Sezer was interviewed at the CCRB (encl.17A-B).

PO Sezer could not recall the incident, but could only recall that at the time of the incident he was in the 81st Precinct and roll call was being conducted. At 3:50 p.m., an 85 (additional units) was called and he, his partner (PO Swift), and possibly the other officers present at Roll Call responded. PO Sezer could not recall who else responded to the 85, nor if any plainclothes units responded.

PO Sezer and PO Swift were assigned to marked RMP 3477; PO Swift was the operator of the RMP. Upon arriving on scene, PO Sezer observed many crowds and approximately fifty people were present on scene and one handcuffed female. PO Sezer was told to transport the handcuffed female, but he could not recall who informed him to do so.

They responded to the scene three minutes after they had received the call. The arrested female was cooperative, but was emotional. PO Sezer sat behind his partner at the rear of the RMP, next to the arrested female, because there was no cage separating the operator of the vehicle from the

apprehended individual. PO Sezer could not recall if there was anyone seated in the front passenger seat.

The female was crying and asked PO Sezer where they were taking her and if she was arrested. PO Sezer informed her that he cannot definitively state if she was arrested, but informed her that they were taking her to the 81st Precinct. There was no further interaction between PO Swift, PO Sezer and the arrested female. They arrived at the 81st Precinct at 3:57 p.m.; they canvassed the rear of the vehicle and resumed patrol.

PO Sezer was presented with a photograph of § 87(2)(b) (encl.9A) and of § 87(2)(b) (encl.11A). PO Sezer did not recognize either female. He was not sure which female he transported because they did not write her name in their memo books.

Neither PO Sezer nor PO Swift un-flipped their mace carriers and told § 87(2)(b) or the female transport to “Shut up bitch, before I’ll mace you.” Neither PO Sezer nor PO Swift used any profanity.

Witness Officer: MICHAEL SWIFT

- *At the time of the incident, PO Swift was a § 87(2)(b) white male. He stands at 6’0” tall, weighs 215 pounds, and is bald with hazel eyes.*
- *On October 22, 2012, PO Swift worked the same tour and assignment as PO Sezer.*

Memo Book

At 3:50 p.m., PO Swift and PO Sezer responded to call for additional units at § 87(2)(b) and § 87(2)(b). PO Swift and PO Sezer then transported one female to the 81st Precinct from the § 87(2)(b) post. At 3:57 p.m., the female was out and a canvas was conducted, but rendered negative results. A report/notification at the station house was completed, and at 4:11 p.m., PO Swift and PO Sezer resumed patrol (encl.20A-C).

CCRB Testimony

On December 2, 2013, PO Swift was interviewed at the CCRB (encl.21A-B).

PO Swift does not have any independent recollection of the incident besides his memo book entries. His partner is listed as PO Sezer, but indicated that his partner was a rookie. PO Swift indicated that there are two officers assigned to the 81st Precinct with the surname of Sezer, one black male and one white male, and he could not recall which officer was his partner on the date of the incident. PO Swift added that he was the operator of the marked vehicle, RMP# 3477, and he responded to the 85 (additional units) made for § 87(2)(b) and § 87(2)(b).

PO Swift was provided a synopsis of the incident that led to the radio call for additional units, but PO Swift could not recall the incident nor could he recall responding to the radio call for additional units. PO Swift was then presented with photographs of § 87(2)(b) (encl.9A) and § 87(2)(b) (encl.11A), but he did not recognize the civilians. PO Swift then reviewed the SPRINT Print-Out of the incident. However, besides his unit, he could not configure which other units responded. PO Swift could not remember if he or his partner made the radio call indicating that their unit has responded on scene. However, they did not respond as a transport vehicle, they only responded to the call for additional units.

PO Swift could not recall if he or his partner stepped out of their RMP, and assisted with the apprehension of any of the arrested individuals on the date of incident.

Subject Officer: SGT. EREK POWERS

- On the date of incident, Sgt. Powers was a § 87(2)(b) black male; he stands at 5'8" feet tall, weighs 160 pounds and has black hair and brown eyes.
- On October 22, 2012 through October 23, 2012, Sgt. Powers worked from 11:15 p.m. to 8:02 a.m. He was the desk sergeant for the 81st Precinct. Sgt. Powers was dressed in uniform.

Memo Book:

As desk sergeant, Sgt. Powers has no memo book entries (*encl.18A-B*).

CCRB Testimony:

On December 3, 2013, Sgt. Ere Powers was interviewed at the CCRB (*encl.19A-B*).

On October 23, 2012, Sgt. Powers was the assigned desk sergeant. Sgt. Powers recalled that on October 23, 2012 at approximately 12:00 a.m., there were two minor females located in the muster room, also known as the Roll Call room. Sgt. Powers recalled interacting with the minor females, but could not recall what was mentioned. However, whenever there are minors inside of the muster room they are usually accompanied by officers, but Sgt. Powers could not recall which officers accompanied the minors.

Sgt. Powers indicated that there were two bathrooms, located near the roll call room, but he could not recall if he had used the bathroom at any point of the incident. Sgt. Powers did not use any profanity at any point of the incident nor did stated "you go home when I tell you to go home, bum bitches." Sgt. Powers could not recall if any other officer used any profanity at any point of the incident or state the aforementioned comment.

Medical Records

At § 87(2)(b), at § 87(2)(b), paramedics arrived at the 81st Precinct Stationhouse to evaluate the injuries § 87(2)(b) sustained during the incident. The Ambulance Call Report indicated that § 87(2)(b) chief complaint was pain in her right knee and hand. § 87(2)(b) vitals were normal, and they did not observe any deformities, bleeding, or swelling at the sites of injury.

At § 87(2)(b) § 87(2)(b) was transported from the 81st Precinct Stationhouse to § 87(2)(b) injuries were evaluated and x-rays of the injury sites were taken. There were no visible injuries, but there was tenderness in § 87(2)(b) right knee and hand. The x-rays determined that there were no fractures, no dislocations, and no effusions (*enclosed in the Medical Records Case File*).

NYPD Documents

SPRINT

On October 22, 2012, at 3:51 p.m., multiple units were present at the incident location. There were two arrests, and an additional unit was called for transport. Officers assigned to sector A responded to the call for an additional unit, and transported one black female back to the stationhouse (*encl.22A*).

Command Log

The 81st Precinct Command Log confirmed the arrests made by PO Rivera. The physical/mental conditions of § 87(2)(b) and § 87(2)(b) are all listed as apparently normal. The command log also indicated that at § 87(2)(b) § 87(2)(b) and § 87(2)(b) were taken to § 87(2)(b) At § 87(2)(b) § 87(2)(b) and § 87(2)(b) returned from § 87(2)(b) to 81st Precinct Stationhouse (*encl.26A-D*).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint in which § 87(2)(b) has been involved (*encl.3A*).
- This is the first CCRB complaint in which § 87(2)(b) has been involved (*encl.3B*).

Subject Officers CCRB History

- PO Erica Rivera has been a member of the service for two years and there are no substantiated CCRB allegations against her (*encl.2A*).
- PO Keville Caesar has been a member of the service for two years and there are no substantiated CCRB allegations against her (*encl.2B*).
- PO Caner Sezer has been a member of the service for two years and there are no substantiated CCRB allegations against her (*encl.2C*).
- Sgt. Erek Powers has been a member of the service for six years and there are no substantiated CCRB allegations against her (*encl.2D*).

Conclusion

Identification of Subject Officers

§ 87(2)(b) identified PO Rivera and PO Caesar by name and they confirmed interacting with § 87(2)(b) and § 87(2)(b) respectively. § 87(2)(b) stated that of the male/female officers that broke up the fight, the male officer spoke discourteously. PO Caesar acknowledged breaking up the fight with PO Rivera. § 87(2)(g). PO Rivera acknowledged striking § 87(2)(b) with her asp § 87(2)(g).

Once handcuffed, § 87(2)(b) indicated that she was placed at the rear of a marked car. PO Rivera was the front passenger, with two additional uniformed officers. The driver of the marked van was unknown to § 87(2)(b) and she described the officer in the rear passenger seat as a Hispanic male, in his twenties, black gelled-back hair, light-skinned, a little mustache, dressed in uniform, and a mole above his lip.

Although there were two females who were arrested on the date of incident, The SPRINT indicated that there was only one female transported to the 81st Precinct. The only transportation unit listed on the SPRINT is Sector A. At the time, of incident, PO Caner Sezer and PO Michael Swift, of the 81st Precinct were assigned to Sector ABC; both their memo books also notated the aforementioned information, but they did not identify the transported female by name.

PO Swift's pedigree information did not match the physical description provided by § 87(2)(b) but PO Sezer's pedigree information generally matched her description. PO Sezer is a white male, was § 87(2)(b)-old at the time of the incident, stands 6'0" tall, is of average build, tan complexion, and has brown hair and eyes. As viewed, in person, during his CCRB interview, and in his Member of Service photograph, PO Sezer has a mole located above his left eyebrow. Both PO Swift and PO Sezer confirmed that while they were transporting a female to the 81st Precinct Stationhouse, PO Swift was the driver and PO Sezer was seated next to arrested female at the rear of the marked car. § 87(2)(g).

In the stationhouse, On October 23, 2012, at approximately 12:00 a.m., § 87(2)(b) indicated that she and § 87(2)(b) were seated in a room located next the front desk, and the officer who worked on the desk interacted with them. § 87(2)(b) described the officer as a Black male, 5'5" tall, dark skin complexion, average build, in his thirties, with a receding hairline and a pointy, big nose. § 87(2)(b) also indicated that officer was referred to, by other officers, as sergeant.

According to the 81st Precinct's command log and roll call, and Sgt. Powers' statement, Sgt. Powers was the assigned desk sergeant. Sgt. Powers is a black male who was § 87(2)(b)-old at the time of the incident. He stands 5'8" tall, is of average build, and has black hair and brown eyes. Sgt. Powers is of dark complexion and his nose may be defined as a "pointy, big" nose. Although Sgt. Powers had little recollection of the incident, he did recall having two minor females seated in the roll call room, located next to the front desk, on the date of incident. § 87(2)(g)

Investigative Findings and Recommendations

Allegation Not Pleaded

§ 87(2)(g)

Allegation A- Discourtesy: PO Keville Caesar spoke discourteously to § 87(2)(b) and

§ 87(2)(b) on § 87(2)(b) and § 87(2)(b)

It is undisputed that § 87(2)(b) and an unidentified female were in a physical fight; a large crowd was in the immediate vicinity. PO Rivera and PO Caesar were across the street and quickly ran towards the incident location to try to break up the fight.

§ 87(2)(b) alleged that while PO Rivera and PO Caesar ran across the street towards the incident location PO Caesar yelled, "This is the fucking police, let go." PO Caesar denied stating "fuck" in any context, but admits to saying "This is the police, let go."

PO Caesar denied saying the aforementioned discourtesy, § 87(2)(g)

According to Police Department vs. Court (2004) (*encl. 1A-J*), profanity used by an officer within a stressful street encounter with unruly civilian(s) is not considered an actionable misconduct, if used, to maintain control of a potentially dangerous situation.

§ 87(2)(g)

Allegation B- Force: PO Erica Rivera struck § 87(2)(b) with an asp on § 87(2)(b) and § 87(2)(b)

It is undisputed that § 87(2)(b) resisted arrest and PO Rivera, at minimum, struck her one time on the leg with her asp, prior to handcuffing her. § 87(2)(b) admittedly refused to stay on the ground as instructed and likely spit on PO Rivera just prior to being struck. § 87(2)(b) stated she then tried to flee and PO Rivera struck her three more times. PO Rivera confirmed that § 87(2)(b) spit on her, but also tried to punch her, and refused to put her hands behind her back. Only then did she strike § 87(2)(b) with her asp once on the leg and was able to handcuff her with the assistance of responding officers. PO Caesar did not observe PO Rivera Strike § 87(2)(b) with her asp.

§ 87(2)(b) did not allege any additional force after she was handcuffed. § 87(2)(b) medical records indicated that there were no visible injuries, no deformities, and/or swelling.

The NYPD Patrol Guide 203-11(encl. 2A-B) indicates that an officer should use the minimum force necessary to maintain control, overcome resistance when effecting an arrest, or to restrain or further restrain a subject whose actions or behavior may cause injury to themselves or others.

§ 87(2)(g)

Allegation C: PO Caner Sezer threatened § 87(2)(b) with the use of force during the transport to the 81st Precinct.

Allegation D: Sgt. Erek Powers spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that during the transport to the 81st Precinct, in response to her mumbling, PO Sezer un-flipped his mace holster and told her to “shut up bitch or I’ll mace you.” PO Sezer recalled that § 87(2)(b) was crying in the marked car and only inquired if they were going to arrest her. PO Sezer responded the only thing he knew was that he and his partner were transporting her to the 81st Precinct.

PO Rivera indicated that during the transport to the 81st Precinct, § 87(2)(b) was quiet and there were no conversations held within the marked car. PO Swift had no independent recollection of the incident.

Inside of the 81st Precinct stationhouse, § 87(2)(b) alleged that while she was in a room separated from the holding cells, with § 87(2)(b) Sgt. Powers exited a bathroom, located inside of the

room she was in, kicked the chair and told § 87(2)(b) and § 87(2)(b) “ You go home when I tell you to go home, bum bitches.” Sgt. Powers could not fully recall the incident, but recalled having two minor females inside of the roll call room, and confirmed that there are two bathrooms near the roll call room. Sgt. Powers recalled having an interaction with the females, but could not recall the specifics regarding the interaction. § 87(2)(b) indicated that when Sgt. Powers stated the abovementioned comment, she, § 87(2)(b) and Sgt. Powers were the only individuals present inside of the roll call room.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date